NPZ
versus
MN

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE, 19 & 20 January 2026

Urgent Chamber Application

F Chinwawadzimba, for the Applicant
C Chabvepi, for the Respondent

TSANGA J:

This is an urgent chamber application brought by the applicant NPZ, the mother of N, a minor female aged 14 years. The relief sought is an order interdicting the respondent, who is the father of the minor child, from transferring N from her current elite private school in the leafy green suburbs of Harare to a private boarding school, reputed country wide for its strict discipline.

The applicant's case is that the proposed transfer is unnecessary and not in the best interests of the child. She avers that N is presently enrolled at a private day school and is in Form 3. At the proposed boarding school, N would be required to repeat Form 2 as there are additional subjects which N has not done at her school and which would form a basis for her form 3 studies at this particular school. The applicant also contends that although N may not have performed exceptionally well in one or two subjects in the last term, there is no academic justification for the move. She further alleges that the proposed transfer has caused the child considerable emotional distress, to the extent that N has threatened self-harm should she be moved to the boarding school. Suffice it to mention that at the beginning of January N was taken by her father for an exam at the school and has been awarded a place. N has up until Wednesday 21 January to take up the offer.

The father opposes the application. He maintains that the transfer is motivated solely by concern for the welfare and best interests of the minor child. He avers that he has discovered that N is associating with what he considers to be a detrimental peer group at her

current school and that this association has continued despite undertakings by N to disengage from such friendships. He provided examples of behaviour that he considers troubling, including N's exposure to inappropriate conversations and influences through her peers. In particular, he refers to a friend of N who is allegedly involved with an older man, and to a note written by N expressing aspirations which, in the respondent's view, demonstrate moral and behavioural vulnerability inconsistent with her age.

The father therefore asserts in his opposing affidavit that his intention is to arrest what he perceives as emerging delinquent behaviour before it escalates by sending her to this particular boarding school whose reputation for strict discipline precedes it. He argues that the strict discipline and more structured environment and would better serve the child's long-term interests. While acknowledging that children have a right to express their views, the respondent maintains that parental responsibility requires him to make decisions that may be unpopular with the child but are nonetheless necessary. He further states that although N is currently residing with the applicant, this arrangement is recent, and that he was the primary caregiver for much of the child's early life while the applicant lived and worked outside the country.

The issue for determination is whether, on an urgent basis, this court should restrain the respondent from effecting the school transfer.

At the hearing, Ms Chinwadzima for the applicant, the mother, emphasised what a party seeking relief on a provisional basis must establish. Firstly, they must have a prima facie right. Secondly, irreparable harm must be likely to be suffered if the provisional order is not granted. Thirdly, the balance of convenience must favour the granting of the order, and, lastly, there must be no alternative relief. The mother's prima facie right is said to be founded on her being the current custodian parent of the child, which also gives her a prima facie right to decide where the child goes to school as a custodian parent. She has also already paid school fees for the child at her current school and had equally done so the previous term. It was not disputed though that the father too had previously paid fees and that both parents had also in prior terms shared the fees burden.

On irreparable harm, Ms Chinwawadzimba emphasised the distress caused to the child by the possibility of being moved. The emotional harm was said to be potentially irreparable hence the quest for the maintenance of the *status quo*. Since the child is already attending her current school and is in the class she should be, the balance of convenience was

said to favour the granting of the provisional order. Furthermore, she was described in her last school report as well-mannered and well behaved. As such, she argued that N's behaviour did not require any immediate removal from the school. The concerns about her behaviour were said to be largely speculative and based on the actions of another child. She also argued that there is no alternative relief and that the suicidal ideations by the child should not be taken lightly.

Mr Chabvepi who represented the father did not dispute that the applicant has a *prima facie* right as explained. His focus was on irreparable harm and that the child's father is looking at the best interests of the child as she is exposed to risks where she needs to be removed immediately from the current school. In particular, he reiterated that the father's concerns stem from the child being exposed to early sexualisation arising from her peer relationships. As such he maintained that in the best interests of the child, it is the long term rather than the short-term interests that ought to inform this matter. As he put it "an extra day of exposure to this environment is irreversible".

He also zeroed in other fact that there is a deadline for taking up the place. He argued that the court as upper guardian of all children should exercise its protective duty by looking at the future of the child.

Analysis

It is trite that in all matters concerning a minor child, the paramount consideration is the best interests of the child. This assessment is holistic and is not confined to academic performance alone. It includes considerations of the child's moral, emotional, psychological, and social welfare. It is also accepted that while the views of a child, particularly one of N's age, must be heard and given due weight, such views are not decisive and must be balanced against the responsibilities and judgment of the parents.

That said it is critical to note that the parties are before me as a result of an urgent application in which a provisional order is sought. In urgent applications, once the elements

for granting provisional relief have been established, it is interim or provisional relief in the form of a provisional order that is granted pending the hearing of the final matter.

As MATHONSI JA succinctly explained in *Samantha Nhende* v *(1) Andrew Zigora (2) Registrar of Deeds N.O* SC 102/22:

> "Firstly, in an urgent application, the applicant is usually granted interim relief on the basis of a *prima facie* case as the applicant would not have proved his or her case. The procedure allows a litigant which can show a *prima facie* right to be accorded interim relief that usually protects the status *quo ante* until the return date of the provisional order. See *Kuvarega* v *Registrar General & Anor* 1998 (1) ZLR 188.
> After the grant of interim relief in the form of a provisional order, the matter does not end there. The procedure is that the respondent is allowed to file a full dossier of opposition to the confirmation of the provisional order, which confirmation takes the form of granting the terms of the final order sought in the prescribed form of the provisional order. After the provisional order is granted, the full procedure of a court application, including the filing of a notice of opposition, answering affidavit and heads of argument, kicks in. It is a procedure which allows the applicant to fully prove his or her case and the respondent to disprove it without the pressure of urgency.
> On the return date of the provisional order, a fully-fledged opposed application is set down and heard on the opposed roll. Following that hearing the court may either confirm or discharge the provisional order. It confirms it by granting the terms of the final order sought."

At this stage, the court is not called upon to make a final determination on the appropriateness of the proposed school, but rather to decide whether the respondent should be interdicted from acting pending a fuller inquiry. On the papers before me, it cannot be said that the respondent's decision is arbitrary or actuated by malice. He has articulated concerns, whether ultimately well-founded or not, that relate to discipline, supervision, and the moral development of the child. Equally, the applicant has raised legitimate concerns regarding continuity of education and the emotional well-being of N.

I am satisfied that the applicant has satisfied the requirements required for an interdict to be granted. She has established her *prima facie* right to seek the interdict. In *Makuni* v Makuni 2001 (1) ZLR 189 (H) the rights of a custodian parent when it comes to a child's education in relation to those of the non-custodial parent were aptly articulated as follows:

> "The custodian parent has generally the right to regulate the minor's life for a custody order "certainly gives the custodian spouse sole control over the person and education of the minor". If the custody has been awarded to the mother, the father's "natural" right to control his minor child's person and education, is however, only "displaced" without being extinguished (see Spiro Parent and Child 4 ed pp 295-296)."

The irreparable harm likely to be suffered by the child has also been articulated in context. The current circumstances where the child is already back at her current school and where fees have been paid also indicate that on balance the interdict should be granted. I do

not think there is an alternative remedy. I am also particularly mindful of the seriousness of the allegation that the child has threatened self-harm. Such an allegation cannot be taken lightly.

Furthermore, at this point, the court must guard against making far-reaching determinations on the basis of contested assertions without the benefit of expert input, particularly in an urgent application where evidence is necessarily limited and where the order sought is of necessity an interim one pending hearing of the final matter. In my view, the best interests of the child at this juncture require a cautious approach and the balance favours the granting of the interim relief that is sought. An abrupt transfer, particularly one involving repetition of a grade and relocation to a boarding environment, may have significant psychological implications for a child who is already distressed. Conversely, an outright prohibition on the respondent from exercising parental decision-making authority without further investigation would be premature. The respondent is temporarily interdicted from transferring the minor child, N, from her current school pending determination of this matter on the merits. It may indeed be necessary pending hearing of the final matter, for the parents to approach a qualified child psychologist or social welfare officer for an urgent assessment of N, focusing on her emotional state, allegations of distress and self-harm, her behavioural issues and the impact of a potential change of school.

Accordingly, the following order is granted:

TERMS OF FINAL ORDER SOUGHT

1. The interim relief be confirmed and made final.

2. The Respondent be ordered that any decision relating to the change of school of the minor child shall be made jointly by both parents, failing which by order of court.

3. The Respondent pays costs on the attorney-client scale in the event of opposition.

INTERIM RELIEF GRANTED

Pending the determination of this matter on the return date, the Applicant is granted an order in the following terms:

1. The Respondent be and is hereby interdicted and restrained from removing or causing the removal of the minor child, Ruva Nhachi, from her current High School, Harare.

2. The Respondent be and is hereby interdicted from enrolling or attempting to enrol the minor child at the proposed boarding school or any other school without the written consent of the Applicant or a court order.

3. The Respondent is ordered to maintain the status quo regarding the minor child's schooling pending the final determination of this matter.

4. Costs shall be costs in the cause.

TSANGA J:…….

Maringe & Kwaramba, Applicant's Legal Practitioners
Cyprian's Law, Respondent's Legal Practitioners